

DIRTYSNATCHA RECORDS LICENSE AGREEMENT

August 25th, 2025 Exclusive Agreement for Azella x Zubah – Ultimate Death [Single]

1. Azella x Zubah – Ultimate Death 2:43

The “ARTIST”: Ashley Goldston p/ka: “Azella” BMI, 1300799267
3615 Hope Rd., Cuming, GA 30041

The “ARTIST”: Theo Zubah p/ka: “Zubah” BMI, 01065632955
4515 Cedar Oak Ct SW, Gainesville GA

&

“LABEL”: DirtySnatcha Records, LLC
2116 Jonathan Cir. Shelby Twp., MI 48317

&

“PUBLISHER”: DirtySnatcha Records Publishing (ASCAP), 1238282844, and LAB10 (BMI)
01262829440
2116 Jonathan Cir. Shelby Twp., MI 48317

DirtySnatcha Records, LLC (“Label”) are delighted to have this opportunity to work with **Ashley Goldston p/ka: “Azella” & Theo Zubah p/ka: “Zubah”** collectively (**“Artist”**) to distribute and exploit certain sound recordings and audiovisual works owned or controlled by Artist as further detailed herein.

The agreement is conditional upon Artist controlling all right, title and interest in and to the recordings of the musical composition (the **“Composition”**) embodied as audio-only or audiovisual recordings and listed in Schedule ‘A’ hereto (the **“Master”**) for the Territory (as defined below), including without limitation all copyrights, free and clear of any claims, encumbrances or rights of any other person.

In consideration for the respective covenants, agreements, representations, warranties and indemnities of the parties contained herein and for other good and valuable consideration (the receipt and sufficiency of which are hereby acknowledged by each party), the parties agree as follows:

1. TERRITORY

1.1 As used herein, the “Territory” shall mean the Universe, including all territories, real or virtual, whether known or unknown, and shall encompass any and all current and future methods, media, and platforms.”

2. LICENSE PERIOD

2.1 “License Period” shall mean the period commencing on the date hereof and expiring on the later of: (i) twenty (20) years after the date of the initial release of the last Master (as defined below) delivered hereunder; and (ii) the date on which all expenses (as defined below) are recouped by Label (the “Initial License Period”). The License Period shall automatically extend for additional consecutive one (1) year periods (each an “Extension”) thereafter unless either party delivers notice in writing not less than sixty (60) days prior to the expiry of the Initial License Period or the then current extension (if applicable).

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3. GRANT OF RIGHTS

3.1 The Artists, collectively and individually, hereby grants to Label an exclusive irrevocable license, in the Territory during the License period to manufacture, sell, distribute, market, publicly perform, and otherwise exploit the Masters in all manner and media now in existence or hereinafter devised

- a. the exclusive right to manufacture, distribute, lease and sell in the Territory Records derived from the Masters in any and all formats;
- b. the exclusive right to advertise, promote and market such Records in the Territory;
- c. the exclusive right to publicly perform and broadcast, and to authorize others to publicly perform and broadcast, the Masters in the Territory;
- d. the exclusive right to synchronize, and to authorize others to synchronize, the Masters with motion pictures, television programs and other audiovisual works which are produced in the Territory for exploitation throughout the universe (each, a "Master Use License") and the non-exclusive right to synchronize, and to authorize others to synchronize, the Controlled Compositions (as defined below) with motion pictures, television programs and other audiovisual works which are produced in the Territory for exploitation throughout the universe (each, a "CC Synch License"). Each Master Use License, along with its corresponding CC Synch License shall be collectively referred to as a "Synchronization License". The term of any non-exclusive Synchronization License may extend beyond the License Period;
- e. the exclusive right to distribute and sell Records derived from the Masters by means of digital transmission or so-called "electronic transmission"; and
- f. the exclusive right to couple, and to authorize others to couple, the Masters with masters by other artists for inclusion so-called 'compilation' records, including without limitation, consumer compilation Records, promotional Records, non-retail jukebox compilations, sampler-type Records and programs for use on public transportation carriers and facilities (each a "Compilation Record").
- g. the exclusive right to distribute and exploit the Masters on so-called streaming services and or websites such as but not limited to www.youtube.com, www.soundcloud.com, www.spotify.com, www.pandora.com in the Territory.
- h. the exclusive right to license the Masters alone or in conjunction with other master recordings for use on podcasts.

3.2 The Artist hereby irrevocably assigns, conveys, and sets over to the Label's publishing designee ("Publisher") 50% ownership of the Publisher's Share of the worldwide copyright (including all renewals and extensions) in the Compositions embodied in the Masters (the "Published Compositions"). The Publisher shall retain exclusive rights to administer, exploit, and collect all revenue associated with the Publisher's Share. The Artist retains 100% of the Writer's Share of performance royalties, which shall be registered and collected through their applicable PRO (BMI or ASCAP).

3.3 The Publisher shall retain all revenue derived from the Publisher's Share of the Published Compositions, including but not limited to synchronization, mechanical, and performance royalties, less any reasonable deductions for administration and exploitation. The Artist shall be entitled to receive 100% of the Writer's Share of performance royalties directly from their applicable PRO. If the Publisher collects the Writer's

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Share on behalf of the Artist, such amounts shall be remitted to the Artist within thirty (30) days of receipt by the Publisher.

- 3.4 Label shall have the right, in the Territory during the License Period and the Sell-Off Period, to use, and authorize others to use: the names, approved likenesses, approved photographs and approved biographies of Artist and each other person performing in or rendering services in connection with Masters in the form approved by the Artist, solely for the purpose of advertising, promoting and marketing the Masters and for general goodwill advertising for the benefit of Label's music business activities provided that no such shall directly endorse the goods or services of a third party. Artist's approval shall only be required once per photo, image or bio to be used and shall be deemed given if no response to the contrary is provided by Artist within ten (10) business days of Label's approval request.
- 3.5 Label shall have the right, in the Territory during the License Period and the Sell-Off Period, to use, and authorize others to use, any artwork created by or on behalf of Artist for use on the packaging of and in connection with any Records embodying one or more of the Masters.
- 3.6 "Label shall, with the prior written consent of Artist in each case, have the exclusive right, in the Territory during the License Period, to 're-mix' (as such term is commonly understood in the music industry) the Masters and to combine the Masters (or any part thereof) (or any one of them) and to authorize others to do so (each such remixed Master a "Remix"). If Artist does not provide written approval or objection within 10 business days of receiving Label's written request, such consent shall be deemed granted, and Label may proceed with the Remix as proposed. "Artist agrees that Artist shall not record, re-record, use, exploit or release for commercial sale, broadcast or communication in the Territory any Master and/or any Composition (in whole or in part) that is embodied in a Master delivered under this Agreement during the License Period.
- 3.7 Notwithstanding anything to the contrary herein, the parties acknowledge and agree that Label shall continue to have the right in perpetuity to distribute, and to authorize others to distribute, universally in all media now or hereafter known, any and all Compilation Records created hereunder prior to the expiry of the License Period and to receive revenues in respect thereof provided that Artist receives the applicable Royalty associated therewith.
- 3.8 The non-exclusive right to incorporate the Master and Composition as a digital NonFungible Token ("NFT"), publicly perform the Master and Composition in-context with the NFT in virtual and augmented reality digital environments (the "Metaverse") and to sell and otherwise transfer ownership of the NFT to third parties in Perpetuity. For the purposes of this Agreement, an NFT is a cryptographic asset that is authenticated on a blockchain with unique identification codes and metadata that distinguishes it from others. An asset that cannot be authenticated on a blockchain and does not contain unique identification codes and metadata that distinguishes it from others is NOT an NFT. For the avoidance of doubt if any revenue is earned in relation to such NFT including but not limited to the selling of the NFT to any third party any and all revenue derived from the NFT is subject to the royalty splits in Schedule A.
- 3.9 Label shall have the non-exclusive right (together with Artist) to create and/or commission the creation of artwork for use in connection with the Masters and Records derived therefrom. Label shall be under no obligation to make use of artwork supplied by Artist hereunder. Label shall not make use of any artwork created by Label hereunder without the prior approval of Artist, which approval shall not be unreasonably withheld and shall be conveyed to Label within five (5) business days of Label's request; therefore, failing which Artist shall be deemed to have approved of such artwork.
- 3.10 Label may assign any or all of this agreement or any of its rights and/or obligations hereunder solely to any affiliate, parent or subsidiary of Label for which Label has a controlling interest, or to any partnership or other venture in which Label participates, or to any person or entity which acquires Label.

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4. ROYALTIES

- 4.1 With respect to the exploitation of Masters hereunder, Label will pay Artist a royalty (the "Royalty") equal to: (i) fifty percent (50%) of "Net Proceeds" (as defined below).
- 4.2 For publishing income, all revenues earned from the exploitation of the Composition(s) shall be divided as follows: fifty percent (50%) to the Artist (Writer's Share) and fifty (50%) to the Label (Publisher's Share)
- 4.3 The Artist's royalty payments shall be distributed as specified in Schedule "A", regardless of whether the royalties are payable to a single recipient or divided among multiple recipients. All royalty payments, including any publishing royalties for the Artist's share of Controlled Compositions (as detailed in Section 6), will be distributed in accordance with the allocation outlined in Schedule "A".
- 4.4 Notwithstanding anything to the contrary herein, for SoundExchange or other revenue collected by a society for which the so-called "maker share" and "performer share" are paid out separately (e.g. Neighboring Rights), between Artist and Label, Label will be entitled to collect and retain for its own account one hundred percent (100%) of the so-called "maker's share" and Artist will be entitled to collect and retain for its own account one hundred percent (100%) of the so-called "performer share".
- 4.5 With respect to any CC Synch License, Label will pay Artist a royalty equal to 100% of all revenues received by Label in respect of such CC Synch License, in accordance with the accounting provisions set out below.

5. ACCOUNTING

- 5.1 No less frequently than within ninety (90) days following the end of each fiscal quarter period during the License Period and the Sell-Off Period, Label shall furnish Artist with a written statement in Label's standard accounting format setting forth the computation of royalties for the applicable monthly periods. Each such statement shall be accompanied by payment of all Royalties payable, if any. All statements shall be provided in digital form via Label's accounting system and Artist shall be provided with access thereto.
- 5.2 Sales by Label's sub-licensees, distributors and/or partners, if any, shall be deemed to take place in the calendar quarter in which Label receives (or is credited) payment therefore from such sub-licensee. Label shall use reasonable commercial efforts to obtain prompt and accurate accounting and payment from its licensees, which shall be no less frequent than twice per annum.
- 5.3 Label shall keep true and correct records and books of account relating to the sale of Records, and all other exploitations of Masters hereunder and other activities relevant to the calculation of royalties payable hereunder. All Royalty statements and all other accounts rendered by Label to Artist shall be binding upon Artist and not subject to objection by Artist for any reason unless specific objection, in writing stating the basis thereof is given to Artist within eighteen (18) months following Artist's receipt of such statement. Artist shall be foreclosed from maintaining any action, claim or proceeding against Label in any forum or tribunal unless commenced within twenty four (24)

months following Artist's receipt of such statement. Artist shall have the right to appoint a chartered or certified public accountant (or a firm of chartered or certified public accountants) to examine and make copies of Label's books and records insofar as they pertain to this Agreement. Such chartered or certified public accountant will act only under a confidentiality agreement which provides that any information derived from such audit or examination will not be released, divulged or published to any person, firm or corporation other than Artist, Artist's attorneys, Artist's advisors, to a judicial or administrative body in connection with any proceeding relating to this Agreement, or by mandate of law. Such an examination shall take place at Label's offices where such books and records are normally maintained during normal business hours, on reasonable advance notice, not more than once in any calendar year and at Artist's sole cost and expense.

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6. CONTROLLED COMPOSITIONS

- 6.1 Artist shall grant, or shall cause Artist's publisher to grant, to Label and Label's designees, licensees, or affiliates an irrevocable non-exclusive license, under copyright, to reproduce each Controlled Composition on Records and to distribute those Records in the Territory (a "Mechanical License").
- 6.2 The Artist also assigns to the Label 50% ownership in the worldwide copyright of all Controlled Compositions embodied in the Masters, including all publishing rights. The Label shall act as the exclusive administrator of such rights, with full authority to issue synchronization, mechanical, and other licenses on behalf of both the Artist and the Label. For publishing administration, the following entities shall represent the rights: (BMI) LAB10 Publishing, #01262829440 or (ASCAP) DirtySnatcha Records Publishing, #1238282844
- 6.3 All Controlled Compositions embodied in the Masters are hereby licensed to the Label for reproduction and distribution at a rate determined by the percentage of publishing ownership for each Controlled Composition ("Ownership Share"), as follows: For Canada and for the United States the Label shall pay one hundred percent (100%) of the minimum industry rate in effect on the date of delivery of the Masters, multiplied by the ownership share of the publishing rights not owned by the label. Notwithstanding the foregoing, in no event shall Label be obligated to pay more than a maximum of six (6) Rate for all musical compositions (including Controlled Compositions and non Controlled Compositions) embodied on any EP or more than a maximum of twelve (12) times the Rate for all musical compositions (including Controlled Compositions and non-Controlled Compositions) embodied on any Album. If the aggregate mechanical royalty rate for any Record exceeds the maximum aggregate mechanical royalty rate provided in the preceding sentence, the aggregate mechanical royalty rate for Controlled Compositions contained on such Record shall be reduced by the amount of that excess.
- 6.4 If a particular Composition is embodied more than once on a particular Record, whether as a re-mixed version or otherwise, Label will pay mechanical royalties as if that Composition was embodied only once on the particular Record.
- 6.5 Artist hereby grants, or shall cause Artist's publisher to grant, to Label and Label's licensees the non-exclusive right (to the extent such right is controlled by Artist) during the License Period to reproduce each Controlled Composition in promotional advertisements solely for Recordings hereunder (including so-called EPKs) or for Artist's recording and/or performance services (subject to the Artist's approval in each case) in any and all media (including television, radio and the internet), to reproduce, distribute and perform those promotional advertisements in any manner subject to local collection society rules and regulations and provided Label and/or its designees receive no payment therefore.
- 6.6 Subject to local collection society rules and regulations Artist grants, or shall cause Artist's publisher to grant, to Label and Label's licensees at no cost the non-exclusive right during the License Period to reproduce, distribute and perform each Controlled Composition or any portion thereof by means of streaming only for promotional purposes only on websites or other digital media created or maintained by Label or its licensees or affiliates throughout the Territory.
- 6.7 Artist further grants, or shall cause Artist's publisher to grant, to Label and/or Label's licensees for the duration of the License Period, a universally, synchronization license for each Controlled Composition that is embodied in a video that is used for promotional purposes (each, a "Video"), which synchronization licenses will be issued free of charge and free of fee and royalty. In the event Label elects to commercially exploit such Videos, Label will negotiate in good faith a synch fee with Artist, or Artist's publisher, as the case may be. For the avoidance of doubt, a Video shall only be considered to be commercially exploited if it is made available for direct sale by Label. The making available of a Video for on-demand streaming on a Streaming Source or otherwise, and the earning of advertising revenue by Label from such streams shall not be considered commercial exploitation of such Video.

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6.8 Artist represents and warrants that with respect to any and all Compositions embodied on Masters which are not Controlled Compositions, Artist has secured, or shall promptly following the execution of this Agreement, secure for benefit of the Label and Label's licensees Mechanical Licenses and all other publishing licenses and permissions which Artist grants to Label pursuant to this Clause 6 and Clause 3.2(d), on the same terms and conditions which apply to Controlled Compositions under this Clause 6 and/or Clause 3.2(d).

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7. TRADE-MARKS

- 7.1 Artist grants to Label the non-exclusive right, during the License Period, to use Artist's name and approved likeness, approved image and approved biography solely in connection with the sale, marketing and promotion of the Masters and Records made therefrom including on websites.
- 7.2 Artist acknowledges and agrees that Label's name and logo shall appear on the back cover of all Records made, and the metadata of all Masters exploited via "electronic transmission", pursuant hereto and all advertising relating to the master's and/or such Records.

8. MERCHANDISE

- 8.1. Merchandise: Artist grants to Label the right, but not the obligation, exclusively with respect to the one (1) exclusive design, in perpetuity, to manufacture and distribute merchandise incorporating the exclusive design both online and at retail store locations and license the same. In connection with this right, Artist grants to Label the right to use Artist's names, approved portraits, approved likenesses, approved pictures, approved logos, approved sobriquets and approved biographical material. Label shall make the designs at Label's direct documented third party out-of-pocket cost, provided such costs are recoupable from any monies otherwise payable to Artist hereunder. Label shall pay to Artist merchandise royalty of fifty percent (50%) of "Merchandise Net Receipts" (which is defined as gross income derived from merchandise exploitations, less direct, documented third party out of pocket costs including, without limitation, printing and applicable third party setup charges) actually received by label (or credited to Label against an advance previously received by Label) from sale of merchandise incorporating Label's sales of merchandise incorporating the design..

9. REPRESENTATIONS AND WARRANTIES

- 9.1 Artist hereby represents, warrants and covenants that:

- a. Artist has all necessary rights, power and authority to enter into this Agreement, to perform all of the obligations to be performed by Artist hereunder and to grant to Label all of the rights granted hereunder;
- b. this Agreement does not breach or conflict with any other agreement to which Artist is a party, and Artist will not enter into any agreement or obligation which conflicts herewith;
- c. Artist is not a party to any agreement pursuant to which Artist has granted to any third party any rights in or to the Masters or which otherwise restrict the rights Artist grants to Label herein;
- d. The Masters, the Compositions, Artist's name and any other audio, video or other materials delivered and contributed by Artist, Collectively and Individually, pursuant to this Agreement are wholly original and do not violate any laws or any rights of any party, including any copyright, trademark, right of privacy or other proprietary right of any party;
- e. other than as specifically set out herein, Label shall not be obligated to pay royalties or any other sums to any third parties in connection with the exercise of its rights hereunder;
- f. Artist has secured all necessary rights from all third parties including without limitation all publishing licenses from any third parties who may hold an interest in the Compositions, to allow Label the full exercise of its rights hereunder; and
- g. all information delivered by Artist will be true, accurate and complete.

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9.2 Artist and Label hereby indemnify and hold harmless on another and its respective licensees and assigns, and its and their respective shareholders, officers, directors, principals, employees and agents (the **"Indemnified Parties"**) from and against any and all losses, costs (including reasonable legal fees), expenses, liabilities and damages arising out of any third party claim in respect of any breach or alleged breach by the indemnifying party of this Agreement or any representation, warranty, covenant, or promise made hereunder as determined by a court of competent jurisdiction. The indemnifying party will reimburse the Indemnified Parties on demand for any payment made at any time after the date hereof in respect of any liability or claim in respect of which the Indemnified Parties are entitled to be indemnified. Upon the making or filing of any such claim, action or demand, the Indemnified Party shall be entitled to withhold from any amounts payable under this Agreement such amounts as are reasonably related to the potential liability in issue. In the event that any such claim does not result in litigation being commenced against the Indemnified Party within one (1) year from the date such claim is initially received by the Indemnified Party, then any monies withheld pursuant to the preceding sentence shall be released to the indemnifying party, provided that if any such claim is litigated after one (1) year from the date it was initially made, the Indemnified Party may thereafter withhold monies payable under this Agreement in accordance with the preceding sentence. The indemnifying party shall be notified of any such claim, action or demand and shall have the right, at its own expense, to participate in the defense hereof with counsel of its own choosing; provided, however, that the Indemnified Party's decision in connection with the defense or settlement of any such claim, action or demand shall be final. Label will not withhold any monies pursuant to this section provided that Artist posts a surety bond from a surety which is satisfactory to Label in its sole discretion and provided that the surety bond is in a type and amount satisfactory to Label in its sole discretion.

10. SELL OFF PERIOD

10.1 Upon the expiration or earlier termination of the License Period, Label shall have the non-exclusive right for a period of six (6) months to sell its inventory of physical Records on hand as of the date of the expiration or termination of the Agreement (the **"Sell-Off Period"**). Label shall not, in anticipation of the Sell-Off Period, manufacture quantities of physical Records in excess of the quantity it reasonably anticipates selling prior to the termination of the Agreement. All sales of Records during the Sell-Off Period shall be in accordance with the terms and conditions of this Agreement. Without limiting the foregoing, such sales shall be in Label's normal course of business and at the same prices in effect prior to the termination of the Agreement, and Label shall continue to credit Artist's royalty account with royalties in accordance with the terms and conditions of this Agreement. For the avoidance of doubt there shall be no such Sell Off Period in respect of digital files, save as expressly provided herein, in respect of which take down notices shall be immediately put into effect and the Label shall have no rights with respect thereto or to the monies generated therefrom.

11. DEFINITIONS

For the purposes of this Agreement, the following definitions shall apply:

- a. **"Album"** means a Record embodying seven (7) or more Masters and having a play-ing time of at least forty (40) minutes
- b. **"Controlled Composition"** shall mean a musical composition or other selection embodied on the Masters, written or composed by the Artist, any producer of the Masters, or any other persons engaged by Artist in connection with the production of Masters, in whole or in part (to the extent of that part only), alone or in collaboration with others, or which is owned or controlled, in whole or in part, directly or indirectly, by the Artist or any person, firm or corporation in which the Artist has a direct or indirect interest.
- c. **"EP"** means a Record embodying four (4) or more, but less than seven (7), Masters and having a playing time less than (30) minutes
- d. **"Single"** means a Record embodying one (1) or more, but less than four (4), Masters and having a playing time less than (30) minutes

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- e. "Expenses" shall mean will mean all actual expenses properly paid or properly incurred by Label in respect of the production, distribution or other exploitation of the Masters, of Records derived therefrom, or otherwise in connection with the terms of this Agreement. Without limiting the generality of the foregoing, Expenses will include the following which have been incurred in accordance with the terms of this Agreement: (A) all marketing, promotion and publicity costs incurred in connection with Records and/or the Masters; (B) all costs incurred in manufacturing and distributing Records; (C) except as otherwise expressly provided to the contrary herein, all mechanical royalties, sums paid for synchronization and other licenses to use Masters, so-called "samples" and other material, "per use" or other payments made to unions or guilds, taxes and all other payments due to third parties in connection with the acquisition or exploitation or rights in the Masters; (D) all costs incurred in 'mastering' the Masters; (E) all artwork costs paid or incurred by Label in connection with the acquisition, creation, design and preparation of artwork; (F) all costs incurred in creating a Remix (if applicable); (G) all costs incurred in the production of any so-called "music videos" or other audio visual assets embodying the Masters; and (H) all costs incurred in the collection of Gross Revenues including without limitation reasonable outside legal fees.
- f. "Gross Revenues" shall mean all gross receipts (including advances specifically related to the Masters) actually received by Label in the Territory and specifically derived from the exploitation of Masters, including without limitation Gross Streaming Revenues and Gross UGC Revenues. Notwithstanding anything to the contrary in this Agreement, any and all revenues earned and received by Label from YouTube channels owned or administered by Label or its affiliates shall not form part of Gross Revenues and will be solely retained by Label for its own account.
- g. "Gross Streaming Revenues" shall mean gross receipts actually received by Label in the Territory and specifically derived from the sale and/or other exploitation of Records derived from Masters (including without limitation royalties or fees) solely via Streaming Sources. For SoundExchange or other revenue collected by a society for which the so-called "maker share" and "performer share" are paid out separately (e.g. Neighboring Rights), as between Artist and Label, Label will be entitled to collect and retain for its own account one hundred percent (100%) of the "maker's share" and Artist will be entitled to collect and retain for its own account one hundred percent (100%) of the "performer share".
- h. "Gross UGC Revenues" shall mean gross amounts attributable to Records derived from Masters actually received by Label in the Territory and solely derived from YouTube's so-called 'AudioID' 'ContentID' and/or 'VideoID' program.
- i. "Net Proceeds" shall mean the amount, if any, by which Gross Revenues exceeds Expenses.
- j. "Record" - any form of reproduction, distribution, transmission or communication of Masters (whether or not in physical form) now or hereafter known (including reproductions or sound alone or together with visual images) which is manufactured, distributed, transmitted or communicated primarily for personal use, home use, institutional (e.g., library or school) use, jukebox use, or use in means of transportation, including any computer-assisted media (e.g., CD-ROM, DVD Audio, CD Extra, Enhanced CD) or use as a so-called "ring tone" or "ring tune".
- k. "Streaming Sources" shall mean exploitation of Records via so-called 'streaming services' which provide for the transmission of Records over the internet (on a free or subscription basis) in a manner that allows continuous listening of the Record on a device capable of facilitating such listening (including without limitation a computer or mobile device) in a substantially linear form substantially simultaneously with the transmission of the Record over the internet (eg. Spotify, Google Play, Apple Music, YouTube,, Pandora, Deezer or similar services).

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12. GENERAL TERMS

- 12.1 **Entire Agreement.** This Agreement sets out the entire agreement between the parties and supersedes and replaces all prior agreements, discussions and understandings whether written or oral.
- 12.2 **Jurisdiction.** This Agreement is to be construed, interpreted, and enforced in accordance with, and the respective rights and obligations of the parties are to be governed by, the laws of the State of Michigan and the federal laws of the United States applicable therein. Each of the parties hereby attorns to the exclusive jurisdiction of the courts of the State of Michigan.
- 12.3 **Assignment.** Artist shall not assign any of its rights or obligations under this Agreement without the prior written consent of Label except an assignment to a wholly-owned loan-out company and in which case such loan-out corporation shall become a party to this Agreement and Artist shall execute an inducement letter in a form satisfactory to Label. Label may assign any or all of this Agreement or any of its rights and/or obligations hereunder to any party.
- 12.4 **Enurement.** This Agreement shall enure to the benefit of and shall be binding upon and enforceable against the parties and their respective heirs, executors, successors and permitted assigns.
- 12.5 **Amendment.** No amendment or waiver of any provision of this Agreement shall be binding upon either party unless consented to in writing by such part.
- 12.6 **Force Majeure.** Neither party will be responsible to the other for any failure or delay in its performance under this Agreement occasioned by any causes beyond its control including, without limitation, any acts or omissions of the other party, acts of civil or military authority, fires, epidemics, floods, earthquakes, riots, wars, international trade embargoes, insurrections or acts of God. If any such delay occurs, any applicable time period is automatically extended for a period equal to the time lost, provided that the party affected makes reasonable efforts to correct the reason for delay and gives to the other party prompt notice of the delay.
- 12.7 **Confidentiality.** The parties hereto agree to keep the terms and conditions of this Agreement confidential except that each party may disclose this Agreement as required by any law or court order, or to its legal and financial advisors provided such advisors agree to keep all information and this Agreement confidential.
- 12.8 **Notices.** Notices shall be in writing and sent by facsimile, courier or by registered mail to the parties at their respective addresses set out herein (or as changed by notice in writing to the other party)p. If sent by facsimile, notices shall be deemed delivered on the date sent (as per confirmation of transmission notice). If sent by courier, notices shall be deemed delivered when received. If sent by registered mail, notices shall be deemed delivered on the 5th business day (excluding holidays and postal strikes) following mailing.
- 12.9 **Services Unique.** The services rendered by Artist and the rights and privileges granted to Label hereunder are understood and agreed to be of a special, unique, unusual, extraordinary and intellectual character, which gives them a peculiar value, the loss of which cannot be adequately remedied in an action at law for damages. In the event of an actual or threatened breach of any of the provisions of this Agreement by Artist, Label shall have the right to seek a restraining order, injunction or other appropriate equitable relief to prevent such a breach or threatened breach of this Agreement.
- 12.10 **Remedies.** In the event of a breach or alleged breach by Artist or Label or its licensees or assigns under this Agreement, Artist or Label shall give Label or Artist written notice thereof detailing the breach or alleged breach. In the event that such has not been cured within 30 days of written notice from Artist (or where cure is not possible within 30 days, then if Label has not commenced to cure such breach or alleged breach within 30 days), Artist's remedies shall be restricted to the right to recover actual damages in an action at law. In no event will such breach or alleged breach entitle Artist to rescind this

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Agreement or any of the rights granted hereunder or to enjoin or to restrain the use, distribution, exhibition or exploitation of the Masters or publishing rights granted hereunder, and Artist hereby expressly waives any right to seek injunctive or equitable relief.

12.11 **Severance.** Each provision of this Agreement is separate from every other provision and should any provision herein be declared invalid, illegal or unenforceable, such declaration shall in no way affect the validity or enforceability of the remaining provisions herein

12.12 **Counterparts.** This Agreement may be executed in any number of counterparts and delivered by facsimile or electronic scan, each of which shall be deemed to be an original and all of which together shall constitute one and the same instrument.

12.13 **Independent Legal Advice.** Artist acknowledges that he has been represented by and has relied upon legal counsel of his own choosing in the negotiation of this Agreement and has had its contents fully explained by such counsel, or that Artist has been advised of his right to seek such advice and counsel and has knowingly waived such right, and has read this Agreement, and is fully aware of and understands all of its terms and the legal consequences thereof.

IN WITNESS WHEREOF, this Agreement is entered into as of the date first above written, by:

Agreed & Accepted:

DirtySnatcha Records, LLC

Azella

Thomas E. Nalian

Leigh Bray or Thomas Nalian

Ashley Goldston

Zubah

Theo Zubah

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SCHEDULE 'A' **MASTER & PUBLISHING INFO**

Master Recording Information

Title Of Master Recording	Artist Name	Share of Artist Royalty (%)	Share of Label Royalty (%)
Ultimate Death	Azella	25%	25%
Ultimate Death	Zubah	25%	25%

Publishing Information

Title of Composition	Songwriter (PRO), IPI#	Publisher (PRO), IPI#	Writer (%)	Publisher (%)
Ultimate Death	Ashley Goldston BMI, 1300799267	DirtySnatcha Records Publishing (ASCAP), 1238282844, LAB10 (BMI) 01262829440	25%	25%
Ultimate Death	Theo Zubah, BMI, 01065632955	DirtySnatcha Records Publishing (ASCAP), 1238282844, LAB10 (BMI) 01262829440	25%	25%

Agreed & Accepted:

DirtySnatcha Records, LLC

Thomas E. Nalian

Leigh Bray or Thomas Nalian

Azella

Ashley Goldston

Zubah

Theo Zubah